

Are International Judges Afraid of Science?: A Comment on Mbengue

JOSÉ E. ALVAREZ*

International lawyers have built international courts on two myths. The first is the proposition that international judges only *find* the law, not generate it.¹ The second is that international judges make conclusive factual determinations of what actually occurred; that is, they find “the truth.”² Ingo Venzke punctures the first myth by postulating that adjudicators are neither mechanistic appliers of pre-established sources of law nor wholly unbound interpreters issuing legal determinations based on pure volition.³ Venzke argues that international judges make law against the stabilizing, shared assumptions of an interpretative community and that judicial lawmaking is a species of communicative practice.⁴

Makane Mbengue addresses one aspect of the second myth. He argues that international judges avoid getting embroiled with respect to at least one type of fact-finding, namely, scientific fact-finding (SFF), precisely because doing so does not fit their conception of finding “the truth.”⁵ His argument, based on cases such as the International Court of Justice’s (ICJ) decision in the *Gabcikovo-Nagymaros Case*,⁶ is that all

* Herbert and Rose Rubin Professor of International Law, New York University School of Law. Comments were originally presented by the author at a conference at the University of Amsterdam in March 2011. The author acknowledges the assistance provided by the Fiomen D’Agostino and Max E. Greenberg Research Fund.

1. See Ingo Venzke, *The Role of International Courts as Interpreters and Developers of the Law: Working Out the Jurisgenerative Practice of Interpretation*, 34 LOY. L.A. INT’L & COMP. L. REV. 99, 100–03 (2011) (presenting the argument that international courts apply the law, as opposed to creating it).

2. Makane Moïse Mbengue, *International Courts and Tribunals as Fact-Finders: The Case of Scientific Fact-Finding in International Adjudication*, 34 LOY. L.A. INT’L & COMP. L. REV. 53, 61 (2011).

3. See Venzke, *supra* note 1, at 100–02, 115–22 (explaining the role of international judges as interpreters and developers of the law and the consequences of judicial law-making).

4. *Id.* at 112–13.

5. Mbengue, *supra* note 2, at 58–59.

6. *Id.* at 64–65.